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April 21, 2026

ENGROSSED HOUSE
BILL NO. 3701

By: Caldwell (Chad) of the
House

and

Seifried of the Senate

An Act relating to higher education; requiring all academic programs be reviewed on a five-year cycle for quality and currency; directing a review of a program if classified as a low-producing program; defining low-producing program; requiring the Oklahoma State Board of Regents for Higher Education to conduct an annual review of low-producing programs for deletion, suspension, or continuation; providing exemptions for continuation of low-producing programs; providing for probationary period for certain low-producing programs; requiring programs submit a plan of improvement; directing suspended or deleted programs to complete process within one academic year; requiring review after completion of probationary period; prohibiting low-producing programs from receiving more than two exemptions in a consecutive ten-year period; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3252 of Title 70, unless there is created a duplication in numbering, reads as follows:

1 A. The Oklahoma State Regents for Higher Education shall
2 require all academic programs be reviewed by faculty on a five-year
3 cycle to ensure quality and currency of each program's content. If
4 a program is classified as a low-producing program, the
5 classification shall trigger an early review by the Oklahoma State
6 Board of Regents for Higher Education.

7 B. A "low-producing program" means a program that does not meet
8 the following minimum standards during a five-year average for the
9 degree plan:

10 1. Associate in Arts or Sciences has:

- 11 a. less than five (5) degrees conferred, or
- 12 b. less than twenty-five (25) majors enrolled;

13 2. Associate in Applied Science has:

- 14 a. less than five (5) degrees conferred, or
- 15 b. less than seventeen (17) majors enrolled;

16 3. Baccalaureate has:

- 17 a. less than five (5) degrees conferred, or
- 18 b. less than twelve (12) majors enrolled;

19 4. Masters has:

- 20 a. less than three (3) degrees conferred, or
- 21 b. less than six (6) majors enrolled; and

22 5. Doctoral has:

- 23 a. less than two (2) degrees conferred, or
- 24 b. less than four (4) majors enrolled.

1 C. The State Board of Regents shall conduct an annual review of
2 low-producing programs for each of its member colleges and
3 universities.

4 D. Low-producing programs shall be reviewed by the State Board
5 of Regents for deletion, suspension, or continuation. Programs may
6 qualify for continuation if the programs qualify under one of the
7 following exceptions:

8 1. No cost - The program has no cost to the university;

9 2. Shared cost - The program shares costs and resources with
10 other non-low-producing programs or receives support from external,
11 non-state funding sources;

12 3. Restructured programs - The program was recently reinstated
13 after suspension for significant curriculum modifications aimed at
14 enhancing productivity;

15 4. Collaborative programs - The program is currently offered in
16 collaboration with other institutions or the institution intends to
17 pursue collaborative opportunities; or

18 5. Grow the program - The program has an established or
19 developing strategic plan specifically designed to achieve minimum
20 productivity standards.

21 E. Programs identified as low-producing and granted an
22 exemption to continue shall be placed on probationary status for
23 three (3) years. Programs placed on probationary status shall
24 submit a plan of improvement to the State Board of Regents for

1 approval. Failure to meet or demonstrate progress towards minimum
2 productivity standards as noted in the plan of improvement within
3 the three-year period shall lead to action by the State Board of
4 Regents to delete or suspend the program. Programs selected for
5 suspension shall complete the process within one (1) academic year.
6 Programs selected for deletion have one (1) academic year to develop
7 a teach-out plan and submit the required documentation.

8 F. Upon completion of the probationary period, programs shall
9 be reviewed by the State Board of Regents the year following the
10 conclusion of the probationary period.

11 G. Any program that is classified as a low-producing program
12 shall receive no more than two (2) exemptions from paragraphs 2
13 through 5 of subsection D of this section in a consecutive ten-year
14 period and shall be scheduled for deletion upon being classified an
15 additional time as a low-producing program within the ten-year
16 period.

17 SECTION 2. It being immediately necessary for the preservation
18 of the public peace, health or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

21 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
22 April 21, 2026 - DO PASS
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